BOND MEASURE A
UPLAND UNIFIED SCHOOL DISTRICT

IMPARTIAL ANALYSIS OF BOND MEASURE A

This Impartial Analysis of Bond Measure A has been prepared by County Counsel pursuant to Section 9500 of the California Elections Code.

This Measure was placed on the ballot by a resolution adopted by the Board of Education of the Upland Unified School District (District). A "yes" vote by at least fifty-five percent of the voters voting on this Measure will authorize the District to issue bonds in the amount of $236,700,000 to be used solely for the purposes set forth in this ballot Measure. A "no" vote means that the District will not be authorized to issue and sell the $236,700,000 in bonds set forth in the Measure.

The District's Resolution was adopted pursuant to California Education Code sections 15100 et seq., 15264, et seq., Government Code section 53506 and Articles XIIIA and XVI of the California Constitution.

The bond proceeds may only be used for the types of projects listed in the Measure which is contained in Exhibit B to the Resolution. These projects include: constructing, expanding, renovating, modernizing, replacing, upgrading, or removing classrooms and learning spaces to support current educational programs and improve safety, accessibility and operational efficiency; various building property maintenance projects and updating/adding restrooms; providing upgraded or new classrooms, labs, shops, and specialized instructional spaces for job training and career readiness after high school; constructing or renovating science, technology, engineering and math (STEM) classrooms, labs, and teaching spaces, student support facilities, facilities to provide administrative services and multi-purpose rooms/auditoriums/theaters; improving school safety and security through upgraded emergency communications, cameras, alarms, fencing, emergency response systems, security infrastructure, secure campus entry points, student safety and traffic flow at parking and school drop-off and pick-up areas; improving facilities for accessibility, including those required by the Americans with Disabilities Act; and other projects for all grade levels of schools and other District sites. Some of the projects listed in the Measure may assume the receipt of matching State funds which may or may not be approved by the State Legislature.

The District will conduct financial and performance audits annually and all bond expenditures will be monitored by an Independent Citizens' Oversight Committee to ensure that the bond proceeds are spent as promised and specified as required by Education Code section 15278 et seq. in order to ensure bond revenues are used for proper purposes. No District employees or vendors will be allowed to serve on the Citizens' Oversight Committee. Bond proceeds cannot be used for teacher or administrator salaries not related to oversight of the projects.

The District will also take all actions necessary to establish an account in which proceeds from the bond Measure will be deposited in accordance with state law.

The bonded debt will be a general obligation of the District and will be financed by taxes levied annually on taxable property located within the District.

LAURA FEINGOLD
County Counsel
s/ JOLENA E. GRIDER
Deputy County Counsel

ARGUMENT IN FAVOR OF BOND MEASURE A

This Argument in Favor of Bond Measure A was submitted pursuant to Section 9501 of the California Elections Code. It is the opinion of the author(s), and has been printed exactly as submitted.

Your Yes Vote on Measure A will do three things: Repair schools. Protect students. Prepare our children for the future.

Many of our District's campuses were built in the 1950s and 60s and need repairs and updates to meet modern education and safety standards. Our students can't prepare for careers in the 21st century if they are still learning in old, outdated classrooms and labs.

All students deserve safe schools. Aging HVAC, plumbing, and electrical systems have failed several times in recent years, causing learning disruptions. In the last two years alone, the District suffered 602 roof leaks and 1,294 plumbing failures.

ARGUMENT IN FAVOR – Continued on next page

While Upland Unified School District has a positive budget certification and certified reserves for the next 3 years, the State does not provide adequate funding for these facility repairs and updates at our schools without a local funding source.

Your YES vote on Measure A is a trustworthy investment in student safety and classroom upgrades. Strong schools protect property values, support quality of life, and improve our neighborhoods.

ALL Funds For Facilities, ZERO funds for Salaries:

- All funds would be controlled locally for our schools only and could not be taken away by the State
- ZERO funds could be used for employee salaries or general expenses
- An independent citizens' oversight committee and mandatory annual audits will ensure ALL funds are spent as voters intended

Keep Upland Students Safe and Prepared:

- Improve school safety and security systems
- Provide classrooms and labs for job training and career readiness after high school
- Repair or replace leaky roofs
- Make accessibility improvements for people with disabilities
- Upgrade inadequate plumbing, electrical, sewer and HVAC systems
- Make energy efficiency improvements that reduce school utility costs

Let's lift Upland students up with safe, modern schools that prepare them for the future. Vote YES on A.

s/ Dr. Loren E. Sanchez, Retired Superintendent of Upland Unified School District
s/ Farzad Yektafar, CEO, Upland Scheu YMCA
s/ Sarah Fash, President, Upland Teachers Association
s/ Emily Gomez, Auditor, Highlander Educational Foundation
s/ Steve Spears, Retired CPA and Upland Resident

REBUTTAL TO ARGUMENT IN FAVOR OF BOND MEASURE A

This Rebuttal to Argument in Favor of Bond Measure A was submitted pursuant to Section 9504 of the California Elections Code. It is the opinion of the author(s), and has been printed exactly as submitted.

The School District should not be asking taxpayers for $237 Million dollars to fix clogged toilets, leaky faucets or leaky roofs! These are ordinary facility operations problems to be paid from the District's $173 million dollar budget revenues. Bonds are for capital improvements not routine repairs and maintenance.

Taxpayers are still paying for the previous school bond for technology upgrades at all campuses, energy efficiency, upgrading classrooms, roofs and facilities. It's outrageous the District wants MORE BOND MONEY for the same reasons. At today's interest rates, **the new proposed bond could cost taxpayers over $600 MILLION dollars over the next 30 years!**

The decline in student enrollment is predicted to continue. The District must face the economic reality and not request for more tax dollars from residents struggling with the rising cost of living. This potentially means school closures, operations consolidations and reductions to administrative staffing preferably through attrition.

All the money spent from the previous bond funds had no positive impact on educational outcomes based on the dismal standardized student test scores. There is an apparent curriculum problem at the District and Statewide. Over 1300 University of California professors have requested the Chancellor to reinstate SAT/ACT standardized testing for incoming students to address the decline in student preparedness for college level courses. More bond money will not fix this problem.

Providing a solid education to students is key to their success. More bond money will not fix the poor standardized testing results problem. **VOTE NO on A!**

s/ Glenn Bozar, Former Adjunct Professor

ARGUMENT AGAINST BOND MEASURE A

This Argument Against Bond Measure A was submitted pursuant to Section 9501 of the California Elections Code. It is the opinion of the author(s), and has been printed exactly as submitted.

As a former part time adjunct professor in the Business Department at Chaffey College for 13 years teaching business courses, I helped students to advance their careers. I know the value of a good education. Taxpayers are still paying for the District's previous bond measure to modernize school facilities, energy upgrades and new technology. Now the District is proposing a new $237 million bond to be paid over the next 20 years for essentially the same purposes.

The District's current operating budget revenue is a whopping $173 MILLION! Properly managed budgeting sets aside funding for maintenance, repairs and replacement of heating, air conditioning, plumbing, roofs etc. Where is the accountability and oversight the School Board should be providing?

District student population has DECLINED 25% in the last 15 years. Why is the District asking for bond funding to upgrade school classrooms? It's not needed! The District actually allows a significant number of students from other cities to transfer into Upland schools to help make up for the decline in student population. It is expected to continue to decline.

Most technology becomes obsolete in a couple of years and is not the answer to better education. Giving Chromebooks to students was not a good outcome. A staggering 55% of Upland students are below grade level in mathematics and 45% below grade level in reading according to recent standardized testing! Additional bond money will not fix this problem!

The District needs to operate within its $173 MILLION budgeted revenue! Upland's working families and seniors on a fixed income are struggling to make ends meet with the high cost of living. Home, car, prescription and medical insurance costs have skyrocketed in recent years. Food, gasoline, heating and air conditioning costs have also severely strained household budgets. Vote NO on A!

s/ Glenn Bozar, Former Adjunct Professor

REBUTTAL TO ARGUMENT AGAINST BOND MEASURE A

This Rebuttal to Argument Against Bond Measure A was submitted pursuant to Section 9504 of the California Elections Code. It is the opinion of the author(s), and has been printed exactly as submitted.

Quality schools are key to providing an excellent education, preserving property values, and maintaining our great community.

As parents and engaged community members, we know the condition of our schools firsthand. While our schools are well cared for, they were built decades ago. After 70 years of near-daily use by our community, they simply need critical updates to meet today's health, safety, and educational standards.

The facts simply speak for themselves.

FACT: The District's ***responsible*** fiscal management has resulted in a balanced budget and 100% compliant oversight of previous bond funds.

FACT: **No other source of funding exists to upgrade our schools.** The State provides funding for staff, books, and basic maintenance, but not major renovations that Upland schools currently require. Measure A will provide locally controlled funding needed to upgrade failing plumbing, electrical, sewer, and HVAC systems.

FACT: The State ***will*** provide millions in matching funds to help pay for projects, but a local match is required to qualify. Measure A is that match and is the only solution to improve Upland Unified School District classrooms and school facilities.

Measure A protects local taxpayers with strict accountability measures.
No funds for ANY salaries or general expenses.
No money for the State, only locally controlled funds for voter-approved projects.
Full transparency with independent oversight and annual audits.

REBUTTAL TO ARGUMENT AGAINST – Continued on next page

We know what our students deserve: safe, modern schools that help maintain a high-achieving, well-rounded education.

Vote Yes on A to repair schools, protect students, and prepare our children for the future!

s/ Jonathan Dunn, Upland Citizen Bond Oversight Committee
s/ Joel Cascadden, Upland Fire Battalion Chief (Ret.)
s/ Allyson Brown, Former PTA President, Upland
s/ Alan K. Ontiveros, Realtor/Real Estate Agent
s/ Bonnie Cole, Executive Director, Foothill Family Shelter

TAX RATE STATEMENT FOR BOND MEASURE A

UPLAND UNIFIED SCHOOL DISTRICT
GENERAL OBLIGATION BONDS
BOND MEASURE A

An election will be held in Upland Unified School District (the "District") on November 3, 2026 for the purpose of submitting to the electors of the District the question of incurring bonded indebtedness of the District in the principal amount of $236,700,000. If such bonds are authorized and sold, the principal thereof and interest thereon will be payable from the proceeds of taxes levied on the taxable property in the District. The following information regarding tax rates is given in compliance with Section 9401 of the California Elections Code. This information is based upon the best estimates and projections presently available from official sources, upon experience within the District and other demonstrable factors.

Based upon the foregoing and projections of the assessed valuations of taxable property in the District, and assuming the entire debt service on the bonds will be paid through property taxation:

1. The best estimate of the average annual tax rate that would be required to be levied to fund the bond issue over the entire duration of the bond debt service, based on assessed valuations available at the time of the filing of this statement, or a projection based on experience within the same jurisdiction or other demonstrable factors, is $47.46 per $100,000 of assessed valuation of all property to be taxed. It is estimated that the final fiscal year in which the tax is anticipated to be collected is fiscal year 2062-63.

2. The best estimate of the highest tax rate that would be required to be levied to fund the bond issue, and an estimate of the year in which that rate will apply, based on estimated assessed valuations available at the time of the filing of this statement, or a projection based on experience within the same jurisdiction or other demonstrable factors, is $49.00 per $100,000 of assessed valuation of all property to be taxed for fiscal years 2027-28 through and including 2059-60.

3. The best estimate of the total debt service, including the principal and interest, that would be required to be repaid if all the bonds are issued and sold is approximately $511,360,000.

Attention of voters is directed to the fact that the foregoing information is based upon projections and estimates only. The actual timing of sales of the bonds and the amount to be sold at any time will be governed by the needs of the District and other factors. The actual interest rates at which the bonds will be sold, which will not exceed the maximum permitted by law, will depend upon the bond market at the time of sale. The actual assessed valuations in future years will depend upon the value of property within the District as determined in the assessment and the equalization process. Assessed valuation is not the same as market price of real property. Therefore, the actual tax rates and the years in which those tax rates will be applicable may vary from those presently estimated and stated above.

Voters should note that estimated tax rates are based on the *ASSESSED VALUE* of taxable property on the County's official tax rolls, *not* on the property's market value. Property owners should consult their own property tax bills to determine their property's assessed value and any applicable tax exemptions.

Dated: July 29, 2026

/s/ Dr. Lynn J. Carmen Day
Superintendent
Upland Unified School District

FULL TEXT FOR BOND MEASURE A

FULL TEXT BALLOT PROPOSITION
OF THE UPLAND UNIFIED SCHOOL DISTRICT
BOND MEASURE ELECTION NOVEMBER 3, 2026

KEY FINDINGS

The Board of Education (the "Board") of the Upland Unified School District (the "District") has made the following key findings:

- The District has provided high quality education to more than 9,000 students at 16 schools, consistent with its mission to provide students with the knowledge to recognize their significance and potential, allowing them to use their 21st century learning experiences to become responsible and productive citizens.
- While the District strives to meet the needs of our community and students, many neighborhood schools are now starting to age, with classrooms and science labs that have seen little to no modernization and were built for a different era of education.
- Aging education facilities need basic safety, technology and educational upgrades to meet modern academic and safety standards.
- Some District schools were built so long ago that the aging underground pipes and infrastructure are now failing.
- Over the last several years, the District has conducted and completed comprehensive outreach to our community, and completed a long-term community Facilities Master Plan that identified the needs at each school site to meet modern safety and security standards, meet the District's goals for supporting current academic standards, and address specific priorities at individual school sites.
- Bond revenue is the primary means by which a school district is able to keep its school buildings and classrooms in good repair and safe, and designed and equipped to support changing educational standards, methods and approaches.
- The District cannot rely on the State of California to fund school facility improvements and the limited state dollars available for facility upgrades often require local matching funds that could be provided by a local bond measure.
- Approval of a bond measure will position the District to pursue available State school facility funding and other grant opportunities, allowing local bond proceeds to be leveraged to maximize investments in District facilities to the extent that such funding is available.
- This bond measure requires strict fiscal accountability protections including mandatory annual audits and an independent citizens' oversight committee comprised of local residents to ensure funds are managed and spent properly.

The following is the full proposition presented to the voters by the District:

"To improve the quality of education by modernizing, constructing, upgrading and equipping classrooms, restrooms/school facilities, career technical classrooms/labs; replace roofs; make safety/security improvements; and renovate/replace electrical/plumbing/sewer systems; shall Upland Unified School District's measure be adopted, authorizing $236,700,000 of bonds at legal rates, levying approximately $47.50 per $100,000 assessed value (raising $14,200,000 annually) while bonds are outstanding, with audits, independent oversight, NO money for salaries, including administrators, only Upland USD educational facilities?"

SCHOOL FACILITIES PROJECTS TO BE FUNDED FROM BOND PROCEEDS

The Board has determined that facility needs exist throughout the District. As schools and support facilities continue to age, and educational programs, technology, and safety requirements evolve, modernization, repair, replacement, and infrastructure improvements are necessary to provide safe, secure, and effective learning environments, as further described below.

The Project List includes the following types of upgrades and improvements at District schools, facilities and sites:

High Schools

- Construct, expand, renovate, modernize, reconstruct, reconfigure, replace, upgrade, or remove classrooms and learning spaces, including standard classrooms, portable classrooms, and special education classrooms to support current educational programs and improve safety, accessibility, and operational efficiency

FULL TEXT – Continued on next page

- Provide upgraded or new classrooms, labs, shops, and specialized instructional spaces for job training and career readiness after high school
- Construct, expand, renovate, upgrade, or modernize STEM (science, technology, engineering, and math) classrooms, labs, and teaching spaces
- Improve school safety and security through upgraded emergency communications, cameras, alarms, fencing, intrusion detection, emergency response systems, security infrastructure, and secure campus entry points
- Improve student safety and traffic flow at parking and school drop-off and pick-up areas
- Improve facilities for accessibility, including those required by the Americans with Disabilities Act (ADA)
- Make energy efficiency improvements that reduce school utility costs and save money for classrooms
- Repair or replace leaky roofs
- Repair or replace aging, deteriorating, or failing plumbing, sewer, heating, ventilation, and air-conditioning (HVAC), storm drain, drainage, landscaping, water, gas, irrigation, fire sprinkler, communications, and utility systems and infrastructure
- Upgrade inadequate electrical systems, emergency power systems, generators, and electrical resiliency improvements
- Install, repair, or replace worn-out and deteriorated gutters, windows, walls, floors, sinks, doors, canopies, lighting and lighting controls, and asphalt
- Renovate outdated restrooms and construct additional restrooms where needed
- Construct, expand, renovate, upgrade, or modernize student support facilities including outdated libraries, cafeterias, kitchens, student unions, health and wellness centers, counseling and student services buildings, storage/shop buildings, music, dance, theater, visual, performing and fine arts classrooms and facilities, gymnasiums, locker rooms, fieldhouses, aquatics facilities, facilities to provide administrative services and multi-purpose rooms/auditoriums/theaters
- Construct, expand, renovate, or upgrade outdoor student areas including patios, quad areas, pools, tennis courts, shade structures, seating, bleachers, grass/turf fields, hardcourts, stages, lunch shelters, and athletic facilities, field lighting, sports lighting and related infrastructure
- Upgrade, install, or expand educational technology infrastructure, equipment, software, networking, communications systems, and related instructional technology

<u>Middle Schools/Junior High Schools</u>

- Construct, expand, renovate, modernize, reconstruct, reconfigure, replace, upgrade, or remove classrooms and learning spaces, including standard classrooms, portable classrooms, and special education classrooms where needed to support current educational programs and improve safety, accessibility, and operational efficiency
- Provide upgraded or new classrooms, labs, shops, and specialized instructional spaces to prepare for high school and future careers
- Construct, expand, renovate, upgrade, or modernize STEM (science, technology, engineering, and math) classrooms, labs, and teaching spaces
- Improve school safety and security through upgraded emergency communications, cameras, alarms, fencing, intrusion detection, emergency response systems, security infrastructure, and secure campus entry points
- Improve student safety and traffic flow at parking and school drop-off and pick-up areas
- Improve facilities for accessibility, including those required by the Americans with Disabilities Act (ADA)
- Make energy efficiency improvements that reduce school utility costs and save money for classrooms
- Repair or replace leaky roofs
- Repair or replace aging, deteriorating, or failing plumbing, sewer, heating, ventilation, and air-conditioning (HVAC), storm drain, drainage, landscaping, water, gas, irrigation, fire sprinkler, communications, and utility systems and infrastructure
- Upgrade inadequate electrical systems, emergency power systems, generators, and electrical resiliency improvements
- Install, repair, or replace worn-out and deteriorated gutters, windows, walls, floors, sinks, doors, canopies, lighting and lighting controls, and asphalt
- Renovate outdated restrooms and construct additional restrooms where needed
- Construct, expand, renovate, upgrade, or modernize student support facilities including libraries, cafeterias, kitchens, student services, health and wellness centers/hubs, counseling facilities, storage/shop buildings, music facilities, gymnasiums, locker rooms, facilities to provide administrative services and multi-purpose rooms/auditoriums
- Construct, expand, or upgrade outdoor student areas including outdoor learning areas, shade structures, seating, gardens, grass/turf playfields, stages, lunch shelters, and athletic facilities

FULL TEXT – Continued on next page

- Upgrade, install, or expand educational technology infrastructure, equipment, software, networking, communications systems, and related instructional technology

Elementary Schools

- Construct, expand, renovate, modernize, reconstruct, reconfigure, replace, upgrade, or remove classrooms and learning spaces, including standard, portable, kindergarten, transitional kindergarten (TK), preschool, special education classrooms, and school signature programs where needed to support current educational programs and improve safety, accessibility, and operational efficiency
- Provide upgraded or new classrooms, labs, shops, and specialized instructional spaces to prepare for middle school, high school, and future careers
- Construct, expand, renovate, upgrade, or modernize STEM (science, technology, engineering, and math) classrooms, labs, and teaching spaces
- Improve school safety and security through upgraded emergency communications, cameras, alarms, fencing, intrusion detection, emergency response systems, security infrastructure, and secure campus entry points
- Improve student safety and traffic flow at parking and school drop-off and pick-up areas
- Make energy efficiency improvements that reduce school utility costs and save money for classrooms
- Improve facilities for accessibility upgrades, including those required by the Americans with Disabilities Act (ADA)
- Repair or replace leaky roofs
- Repair or replace aging, deteriorating, or failing plumbing, sewer, heating, ventilation, and air-conditioning (HVAC), storm drain, drainage, landscaping, water, gas, irrigation, fire sprinkler, communications, and utility systems and infrastructure
- Install, repair, or replace worn-out and deteriorated gutters, windows, walls, floors, sinks, doors, canopies, lighting and lighting controls, and asphalt
- Renovate outdated restrooms and construct additional restrooms where needed
- Construct, expand, renovate, or modernize student support facilities including libraries, cafeterias, kitchens, health and wellness centers/hubs, counseling facilities, facilities to provide administrative services, and multi-purpose rooms/auditoriums
- Construct, expand or upgrade playgrounds, playfields, turf, preschool play areas, outdoor learning areas, shade structures, lunch shelters, seating, gardens, and other outdoor student spaces for school and community use
- Upgrade inadequate electrical systems, emergency power systems, generators, and electrical resiliency improvements
- Upgrade, install, or expand educational technology infrastructure, equipment, software, networking, communications systems, and related instructional technology

Other District Sites

- Construct, renovate, modernize, replace, and upgrade District support facilities, including maintenance and operations facilities, transportation facilities, warehouses, central kitchens, District office facilities, administrative buildings, storage buildings, support service facilities, fleet facilities, charging infrastructure, and related operational improvements
- Improve facilities for accessibility upgrades, including those required by the Americans with Disabilities Act (ADA)
- Make energy efficiency improvements that reduce utility costs and save money
- Install or upgrade security, fencing, and access roads
- Replace, repair, or upgrade aging water, gas, irrigation, fire alarm, fire sprinkler, communications, and utility infrastructure
- Upgrade emergency power systems, generators, and electrical resiliency improvements
- Upgrade, install, or expand educational technology infrastructure, equipment, software, networking, communications systems, and related instructional technology

To achieve the project categories identified above, bond proceeds may also be used, as applicable and to the extent permitted by law, for related improvements and activities that support or are incidental to those projects. These improvements include but are not limited to: construct energy efficient and climate resilient facilities, upgrade of facilities for energy savings and environmental sustainability, including solar panels, and other projects designed to reduce operating costs and improve environmental sustainability; construct, expand or renovate offices and facilities for professional development of teachers, more efficient administration and multi-purpose learning spaces; expand kitchen and dining capacity; add or enhance outdoor dining spaces; acquisition of furniture; expand and modernize administration buildings; add large group assembly spaces; expand and improve the existing District office and other non-school sites; upgrade and renovate morning and after school care facilities; improve pedestrian and bicycle approaches; upgrade and renovate facilities for family support services; improve teacher and staff support; improve site storage; improve digital hubs and student stores; expand health centers; support student wellbeing; upgrade, renovate, expand, acquire, or

FULL TEXT – Continued on next page

construct support facilities and educational spaces, including central plants, boilers, kitchens, administrative facilities, physical education facilities, music, art, visual and performing arts facilities, amphitheaters, stages, bleachers, science and computer laboratories, multi-purpose rooms, auditoriums, swing space, covered eating areas, maintenance and operations facilities, storage and related support facilities; resurface or replace asphalt, broken concrete and improve walkways, hard courts, play area surfaces, turf and irrigation/drainage systems and campus landscaping; install signage, and fencing; expand, construct or improve parking and pick-up/drop-off areas; acquire land; construct or acquire new schools and classrooms, buildings, and libraries; upgrade or replace interior and exterior painting, floor covering (including carpets), portable classrooms and school facades; demolition; construct various forms of storage, cabinets and support spaces and classrooms; improve outdoor learning environments and quads; repair, upgrade and install interior and exterior lighting systems; construct, acquire or improve learning walls, tack boards, markerboards, playground equipment, play structures, turf and artificial turf, tracks, and facilities to support student health, fitness and safety, lockers, and other facilities serving District students; replace or repair security systems (including access control systems), learning centers and media centers; demolish, remove, replace, reconstruct, or relocate obsolete, aging, or deteriorated facilities and portable classrooms where determined to be educationally appropriate or more cost-effective than renovation. In addition to the listed projects stated above, the Project List also includes the acquisition of a variety of instructional, maintenance and operational equipment, including the reduction or retirement of outstanding lease obligations and interim funding incurred to advance fund projects from the Project List.

The upgrading of technology infrastructure includes, but is not limited to, network rewiring, cabling, access points, computers, mobile interface devices, monitors, data centers, main distribution frame, switches, routers, modules, power supply, data storage, sound projection systems, public address systems, phone communication systems, data/voice network systems, laser printers, digital white boards, document projectors, upgrade voice-over-IP, clock/telephone/ intercom systems, call manager and IT security, wireless technology systems, refresh classroom technology, acquire necessary software and miscellaneous IT and instructional equipment, data storage, phones, identity cards and the construction and installation of a data center in the cloud for the District enterprise systems, such as resource planning, websites, domain name systems, cloud applications and information security.

Each of the bond projects described in the Project List includes the costs of furnishing and equipping such facilities, and all costs which are incidental but directly related to the types of projects described above.

To the extent permitted by law examples of incidental costs include, but are not limited to: planning, design, engineering, and other professional services, facilities assessments, facility master plan preparation and updates, environmental studies (including environmental investigation, remediation and monitoring), inspections, site preparation, utilities, landscaping, construction and/or project management and permitting, legal, accounting and similar costs; independent annual financial and performance audits; a customary construction contingency; demolition and disposal of existing structures; the costs of interim housing and storage during construction including relocation and construction costs; rental or construction of storage facilities and other space on an interim basis for materials and other equipment and furnishings displaced during construction; costs of relocating facilities and equipment as needed in connection with the projects; interim classrooms and facilities for students, administrators, and school functions, including modular facilities; federal and state-mandated safety upgrades; addressing unforeseen conditions revealed by construction/modernization and other necessary improvements required to comply with existing building codes, including the Field Act; access requirements of the Americans with Disabilities Act; costs of the election; project construction oversight, management and administration during the duration of such projects, including by District personnel, and bond issuance costs.

Unforeseen conditions may arise during the course of planning, design and construction resulting in the scope and nature of any of the specific projects described above being altered by the District. In the event that the District determines that, with respect to a modernization or renovation project, it is more economical for the District or otherwise in the District's best interests to be undertaken as new construction, this bond measure authorizes said new construction, including land acquisition, relocation, expansion and construction and/or reconstruction, and all costs relating thereto. Conversely, if the District determines that it is more economical or otherwise in the best interests of the District to modernize or renovate District facilities instead of undertaking a new construction project, this bond measure authorizes such a project. In addition, this measure authorizes the acquisition of real property, including necessary rights of ways or other real property interests, required to expand District facilities, to provide access to school or other District facilities, or to provide additional school or related facilities both to expand existing schools and to construct new schools. Further, authorized projects include reimbursements for project costs previously paid and paying and/or prepaying interim financing for the types of projects included on the project list, such as bond anticipation notes. Finally, projects on this list may be undertaken and used as joint use projects with other public agencies.

FULL TEXT – Continued on next page

Approval of the District's bond measure does not guarantee that all of the identified projects within this Bond Project List will be funded. The District plans to continue to pursue funds from the State of California, if available, to complete certain of the identified facilities projects. The District is unable to anticipate all unforeseen circumstances which may prevent some of the projects listed above from being undertaken or completed.

The order in which projects are listed in the foregoing Project List does not suggest an order of priority. Project prioritization is vested in and will be determined by the District's Board. Bond proceeds shall only be expended for the specific purposes identified herein. The District shall create an account into which proceeds of the bonds shall be deposited and comply with the reporting requirements of Government Code section 53410.

These projects may include participation in the State Facility Program's Joint-Use Program to gain matching funds for teacher education, multi-purpose rooms, gymnasiums, libraries, childcare, and other qualifying Joint-Use facilities. With respect to such joint-use projects, the bond funds authorized by this Measure may be used to pay all of the local share needed to qualify the projects for special State matching funds under the State Facility Program's Joint-Use Program requirements.

FISCAL ACCOUNTABILITY REQUIREMENTS

The provisions in this section are specifically included in this proposition in order that the voters and taxpayers in the District may be assured that their money will be spent only to address specific facilities needs of the District in compliance with the requirements of Article XIIIA, Section I (b)(3), of the State Constitution and the Strict Accountability in Local School Construction Bonds Act of 2000 (codified at Education Code Sections 15264 and following).

Evaluation of Needs. The Board hereby certifies that it has evaluated safety, class size reduction and information technology needs in developing the project list contained in this ballot proposition.

Independent Citizens' Oversight Committee. The Board shall establish an Independent Citizens' Oversight Committee pursuant to Education Code Section 15278 and following to ensure bond proceeds are expended only on the projects listed in this ballot proposition. The committee shall be established within 60 days of the date when the results of the election appear in the minutes of the Board.

Performance Audits. The Board shall conduct an annual, independent performance audit to ensure that the bond proceeds have been expanded only on the projects listed in this ballot proposition.

Financial Audits. The Board shall conduct an annual, independent financial audit of the bond proceeds until all of those proceeds have been spent for the projects listed in this ballot proposition.

Special Bond Proceeds Account: Annual Report to Board. Upon approval of this proposition and the sale of any bonds approved, the Board shall take actions necessary to establish an account in which proceeds of the sale of bonds will be deposited which will be a Building Fund to be held by the San Bernardino County Treasurer, as required by the California Education Code.

ADDITIONAL SPECIFICATIONS

Terms of the Bonds. The bonds may be issued and sold in several series in accordance with the financing plan determined by the Board of Education. Bonds may be issued pursuant to the Education Code or the Government Code in the discretion of the Board of Education at interest rates not exceeding the legal limits.

Limit on Use of Bond Proceeds. Proceeds from the sale of bonds authorized by this proposition may be used only for the construction, reconstruction, rehabilitation or replacement of school facilities including the furnishing and equipping of school facilities or acquisition or lease of real property for school facilities and not for any other purpose, including teacher and administrator salaries not related to oversight of the projects to be constructed with the bonds and other school operating expenses. Proceeds of the bonds may be used to pay or reimburse the District for the cost of District staff when performing work on or necessary and incidental to the projects being financed.

STATEMENT REQUIRED UNDER EDUCATION CODE 15122.5

"Approval of Bond Measure A does not guarantee that the proposed project or projects in the Upland Unified School District that are the subject of bonds under Bond Measure A will be funded beyond the local revenues generated by Bond Measure A. The District's proposal for the project or projects may assume the receipt of matching state funds, which could be subject to appropriation by the Legislature or approval of a statewide bond measure."